

23STCV31060 23STCV31060

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-23

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Case Number: 23STCV31060 Hearing Date: September 23, 2026 Dept: 309

Superior

Court of California

County

of Los Angeles

DEPARTMENT 17

TENTATIVE RULING

ROBIN

ALKEINE, et al.

vs.

CITY

OF LOS ANGELES

Case No.: 23STCV31060

Hearing

Date: September 23, 2026

Defendant's

motion to bifurcate is GRANTED.

On

12/19/2023, Plaintiffs Robin Alkeine, Jeannine Topalian, Shant Alkeine, and

Vaughn Alkeine (collectively, Plaintiffs) filed suit against Defendant City of Los Angeles (Defendant) alleging: (1) inverse condemnation; (2) nuisance; and (3) dangerous condition of public property.

On

5/22/2026, Defendant moves to bifurcate trial.

Discussion

Defendant

moves for an order that: "(1) bifurcates the trial in this matter such that the Court will first decide (in a bench trial) the question of "liability" as to all causes of action raised by the parties; (2) sets the second phase of a bifurcated trial (a potential jury trial on the question of "damages") after the Court first determines the issue of liability in the first phase." (Motion, 3:14-17.)

In

support, Defendant notes an established line of case law like *Weiss v. People ex rel. Dept. Transp.* (2020) 9 Cal.5th 840, 854–855, fn. 4. There, the California Supreme Court recognized that trial courts commonly bifurcate inverse condemnation actions into two phases: first, a determination by the court as to whether the public entity's conduct resulted in a compensable taking or damage, through dispositive motions or, if necessary, a bench trial; and second, if liability is established, a jury determination of the amount of compensation owed.

After

review, the Court agrees that resolving liability first would promote consistent findings and substantially narrow the issues to be presented to the jury.

Based

on the foregoing, Defendant's motion to bifurcate is granted.

It is so ordered.

Dated:

September , 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at smcdept17@lacourt.org by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.